

The Disaster Management National Executive Committee (Procedures And Allowances) Rules, 2006

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The Disaster Management National Executive Committee (Procedures And Allowances) Rules, 2006

Rule

THE-DISASTER-MANAGEMENT-NATIONAL-EXECUTIVE-COMMITTEE-PROCEDURES-AND-ALLOWANCES-RULES
-2006 of 2006

Published on 27 September 2006

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The Disaster Management National Executive Committee (Procedures And Allowances) Rules, 2006

Published vide Notification G.S.R. 597(E), dated 27.9.2006 and published in the Gazette of India, Extra Part 2, Section 3(i) dated 27.9.2006.

7.

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G.S.R., 597(E), dated 27.9.2006 - In exercise of the powers conferred by clauses (c) and (d) of sub-section (2) read with sub-section (1) of section 75 of the Disaster Management Act, 2005 (53 of 2005), the Central Government hereby

makes the following rules, namely:-

1.

Short title and commencement

(1)

These rules may be called The Disaster Management National Executive Committee (Procedures and Allowances) Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Disaster Management Act, 2005 (53 of 2005);

(b)

"Chairperson" means the Chairperson of the National Executive Committee under clause (a) of sub-section (2) of section 8;

(c)

"Member" means the Member of the National Executive Committee under sub-section (2) of section 8;

(d)

"section" means a section of the Act;

(e)

"sub-committee" means a sub-committee constituted by the National Executive Committee under sub-section (1) of section 9.

(2)

Words and expressions used herein and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Procedure to be followed by the National Executive Committee

(1)

The Chairperson of the National Executive Committee may, as and when required, in the implementation of the directions of the Central Government, seek guidance from the National Authority as to the modalities of such implementation.

(2)

The Chairperson of the National Executive Committee shall, in case of emergency, have the power to exercise all or any of the powers of the National Executive Committee but exercise of such powers shall be subject to ratification by the National Executive Committee.

(3)

The Chairperson of the National Executive Committee shall preside over the meetings of the National Executive Committee:

Provided that in the case of his inability to preside over any meeting of the National Executive Committee, he shall nominate one of members of the National Executive Committee to preside over the meeting.

(4)

The Chairperson of the National Executive Committee may nominate one or more officers:-

(a)

to assist him in the performance of his functions as the Chairperson of the National Executive Committee;

(b)

to maintain proper records relating to the meetings of the National Executive Committee;

(c)

to take follow up action to ensure that the decisions taken in the meetings of the National Executive Committee are implemented in time; and

(d)

to perform such other functions as the Chairperson may desire them to perform.

(5)

The Chairperson of the National Executive Committee shall decide the day, time and place of a meeting of the National Executive Committee.

(6)

The National Executive Committee shall meet as often as necessary but at least once in three months.

(7)

The National Executive Committee shall give notice of its meeting and circulate its agenda at least three days in advance, unless there is an emergency situation on occurrence of a major disaster or a situation of such a threatening disaster, when the National Executive Committee shall meet at the earliest to ensure a smooth and efficient response.

(8)

The National Authority may invite any member of the National Executive Committee whenever required, to assist it in discharge of its functions.

(9)

The National Executive Committee shall invite, the Secretary or Additional Secretary, as the case may be, of the National Authority, as a special invitee to attend its every meeting.

(10)

The National Executive Committee shall forward the minutes of every meeting to the National Authority.

4.

Allowances to be paid to a person associated as an expert with a sub-committee of the National Executive Committee

- A member of the sub-committee constituted under sub-section (1) of section 9, shall be paid travelling and daily allowances as are admissible to non-officials attending the meetings of committees set up by the Central Government, as specified in Appendix 2 to Supplementary rule 190.

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